

26IWUD00982 26IWUD00982

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The court DENIES the Defendant's motion to quash service of the complaint and summons. Under Evidence Code section 647, the return of a registered "process server . . . establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (See *Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1059-1060.) "As explained in Evidence Code section 604, '[t]he effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.'" (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.)

In this case the proof of service shows a registered process server effected personal service on the Defendant on June 29, 2026. As a result, the Defendant was required to come forth with evidence—beyond his statement that he was not personally served—to overcome the presumption under Evidence Code section 647. (See *Palm Property Investments, LLC v. Yadegar*, supra, 194 Cal.App.4th at p. 1428.) Because the Defendant did not do so, the court denies the Defendant's motion to quash and orders the Defendant to file a responsive pleading within five days.